

Court No. - 21

Case :- WRIT - C No. - 4294 of 2024

Petitioner :- Santosh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Anurag Bhatt,Rohit Kumar

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Counsel for the respondent-Electricity Department to obtain instructions and demonstrate how the procedure prescribed under U.P. Electricity Supply Code, 2005 was followed in issuing impugned recovery.
2. Put up as fresh on 14.03.2024.
3. When the case is listed next, name of Sri P.N. Rai (A/P 0771/2013) shall be shown as counsel for the respondent-Electricity Department.

Order Date :- 1.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the respondent-Electricity Department even in the second round.
2. List as fresh on 29.3.2024.
3. In the meantime, no coercive measure shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 14.3.2024

Jaideep/-

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Counsel for Petitioner :- Anurag Bhatt, Rohit Kumar

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Paras Nath Rai

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The instant petition is directed against the recovery citation dated 12.08.2023 issued by respondent No. 2 for recovery of electricity dues in a case relating to theft of electricity.

2. It has come on record that the petitioner received a notice dated 30.10.2015 requiring him to deposit Rs.4,23,014.00 within fifteen days. He thereafter deposited Rs.1,23,039.00 on 31 July 2023. The assessment order was not challenged by him even after having full knowledge of the same, as such, no good ground is made out to interfere with the impugned recovery citation.

3. At this stage, counsel for the petitioner submits that the petitioner is ready to pay the balance amount as per the recovery citation in installments.

4. Shri P.N. Rai, learned counsel appearing on behalf of the respondent, Electricity Department, has no objection.

5. Accordingly, the instant petition is **disposed of** as follows:

(a) The petitioner will deposit the balance amount of Rs.3,00,000/-

as per the recovery certificate dated 12.08.2023 along with accrued interest and other charges in three equal monthly installments.

(b) The first installment will be payable on 20 April 2024, the next one on 20 May 2024 and the last and final one on 20 June 2024.

6. In case of default in depositing the amount as per the aforesaid time schedule, the instant order will lapse automatically and it shall become open to the respondent to proceed further in the matter in accordance with law.

Order Date :- 29.3.2024
Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)